

FEDERAL MARITIME COMMISSION

20230930-DK-BUTTERFLY, INC.
F/K/A BED BATH & BEYOND INC.,

Complainant,

v.

ORIENT OVERSEAS CONTAINER
LINE LIMITED AND OOCL
(EUROPE) LIMITED,

Respondents.

Docket No. 23-02

Served: June 17, 2026

BY THE COMMISSION: Laura DiBELLA, *Chairman*,
Rebecca F. DYE, Daniel B. MAFFEI, Max M. VEKICH,
Robert J. HARVEY, *Commissioners*.

Order Denying Respondents' Second Petition to Increase Page Limits for Exceptions

On May 7, 2026, the Federal Maritime Commission ("Commission") granted a petition filed by Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively "OOCL") to increase the time to file exceptions to an initial decision issued on April 24, 2026, and to increase the page limit for the brief on exceptions. *See* Order Extending Deadlines to File Exceptions and Replies and Increasing Page Limits for Exceptions. The time

limit to file exceptions was extended from 21 days to 60 days, and the page limit for the initial brief was increased from 50 pages to 60 pages.

On June 9, 2026, OOCL requested for a second time that the Commission increase the page limits for exceptions, by an additional 10 pages. On June 10, 2026, complainant Bed Bath & Beyond Inc.¹ (“BBBY”) opposed that second request for increased page limits.

Commission rules clarify that a repetitious motion will not be entertained. 46 C.F.R. § 502.69(d). As BBBY persuasively argues, OOCL fails to explain why the instant request is not duplicative of its earlier motion, and fails to establish good cause for the requested relief. The Commission already considered whether and how much to extend the page limits given the complexity and length of the initial decision, as well as the strong policy arguments in favor of page limits and BBBY’s opposition to such relief.

Considering OOCL’s request and BBBY’s opposition, the Commission hereby:

DENIES OOCL’s request to further extend the page limits for exceptions.

By the Commission.

David Eng
Secretary

¹ Currently known as 20230930-DK-Butterfly-1.